

Contents

CHAPTER ONE	1
INTRODUCTION TO LEGAL PROFESSION AND ETHICS	1
Ethics, Profession, Professional Ethics and Legal Ethics	1
1.2. Moral Issues and Moral Dilemmas.	2
1.3. The Theory of Moral Obligation.....	3
CHAPTER TWO	5
THE LEGAL PROFESSION.....	5
2.1 Meaning and Nature of Legal Profession	5
2.2 Admission to the Legal Profession in Ethiopia.....	5
2.3 Unauthorized Practice in Legal Profession.....	6
CHAPTER THREE	7
JUDICIAL CONDUCT	7
3.1. Ethical Duties of Judges in Judicial activities.....	7
1. Independence	7
1. Accountability.....	7
3. Impartiality.....	9
4. Competence and Diligence	11
5. Equality.....	12
6. Civility among Judges.....	13
3.2 Ethical Requirements of Judges in Extra Judicial Activities	14
3.3. Appointment, Withdrawal and Removal of Judges in Ethiopia.....	16
3.4. Factors that Influence Ethical Requirement of Judges.....	19
3.5. Liability (Responsibility) for Breach of Rules of Conduct.....	19
CHAPTER FOUR.....	21
ADVOCATES' ETHICS	21

4.1 The profession, the Justice System, Court and the Country.....	21
4.2 Ethical Requirements of Advocates in relation to their Clients	21
4.2.1. Diligent and Competent Representation	21
4.2.2. Duty of confidentiality	22
4.2.3 Contract of Advocacy	23
4.2.4 Conflict of Interest in General	24
4.3 Non-professional Subsidiary Activities	26
CHAPTER FIVE	27
ETHICS OF THE PUBLIC PROSECUTOR.....	27
5.1 Eligibility	27
5.2	27
Independence of Public Prosecutor.....	27
Immunity of Public Prosecutors.....	27
Confidentiality	28
Competence and Diligence	28
Loyalty and Avoidance of Conflict of Interest	28
5.3 In relation to the Accused, the Court and Other Institutions.....	29
1. Accused/Suspect	29
5.4 Engaging in Activities outside Official Duties	31
5.5 Other Ethical Considerations	31
5.6 Liability for Violation of Codes of Conduct for Prosecutors.....	31
5.6.1 Administrative (Disciplinary) Liabilities	31
5.6.2 Criminal Liability.....	32
5.6.3 Civil Liability.....	32

CHAPTER ONE

INTRODUCTION TO LEGAL PROFESSION AND ETHICS

Legal ethics is a set of rules that regulate the conduct of members of the legal profession. Professional ethics belongs to a wider discipline called applied ethics which form as one branch of ethics or moral philosophy.

Ethics, Profession, Professional Ethics and Legal Ethics

Ethics; like logic, metaphysics, etc, is one branch of philosophy. Ethics is the study of the general nature of morals and of the specific moral choices to be made by individuals in his the relationship with others.

Metaethics is an analytical enterprise which involves trying to discern what moral terms (e.g. ‘good,’ , ‘right’) are generally understood to mean, how justification proceeds in moral discourses and what we are doing when we share moral judgments with others. Metaethics does not actually involve making moral judgments. Rather it involves attempting to discern precisely what is going on when moral judgments are made and uttered and what conceptual justification in moral discourse involves.

Theoretical normative ethics involves making moral judgments at most general levels because the task of theoretical normative ethics is to develop general moral theories. Theoretical normative ethics is classified into

- Moral axiology

Axiology includes theory of good and evil, and tries to answer the question “what is good?” For example, John Stuart Mill says good is happiness.

- Virtue ethics

Virtue ethics includes theories of what is counted as moral excellence in character. It tries to answer a question like; what kind of characteristics should we foster in our children?

- Theory of moral obligation

Includes theories regarding what kind of action and practices are morally permissible and impermissible and what is morally required of all moral agents. One of such theories is utilitarianism.

Applied ethics has the task of resolving specific moral issues and morally problematic and concrete cases which arise in different areas of life. The concentration in applied ethics is on finding acceptable resolutions for moral problems of present and practical urgency. Professional ethics is one area of applied ethics. Thus, legal ethics is one of the sub-branches of applied ethics.

Professional ethics is the rule or standard governing the conduct of members of a profession. Violation of professional ethics results in disciplinary measures.

Chief Justice Marshall explains the aim of legal ethics in the following terms. *“The fundamental aim of legal ethics is to maintain the honor and dignity of the law profession. To secure the spirit of friendly cooperation between the bench and the bar in promotion of high standard of justice, to establish honorable and fair dealings of the counsel with his client opponent and witness to establish a spirit of brotherhood in the bar itself and to secure that lawyers discharge their responsibilities to the community generally”*

The loss of honor and dignity of profession of law results in disrespect for court and law. People lose confidence in courts. Grievances will not be brought to court. The judges (the bench) the advocates (the bar) and prosecutors are not enemy. They should have a friendly cooperation to attain justice.

1.2. Moral Issues and Moral Dilemmas.

Issues are questions or problems to be answered or solved. Moral issues are issues that raise questions of value about rights and welfare of a person.

Questions of value; Answering questions of value involves important value judgment. Answering questions of value requires moral principles

Answering questions of fact does; not involve value judgment. Answering question of fact requires evidence

Assume that there is a rumor about homosexuality of Mr. X whom you know very well. You want to answer two questions related with Mr. X.

- a. Is the rumor about Mr. X's homosexuality true (i.e. is Mr. X homosexual)?
- b. Is there anything wrong if Mr. X is homosexual? involves value judgment

To answer the first question you need evidence which may be an eye witness, video tape or other direct or circumstantial evidences. However, the second question cannot be answered by references to the

evidences obtained under the first you judge the behavior of homosexuality. You have to resort to the value of the society or the moral principles.

“Moral dilemmas Is a situation in which a person faces conflicting moral principles, making it difficult to decide the right course of action. It involve situations in which one cannot escape deciding in which not to decide is to decide and in which doing nothing has the moral status of doing something.

Illustration; let us see the conflict between two values: **confidentiality of information** (information between client and advocate confidential to protect right to privacy under Art.26 of FDRE Constitution) and **liberty of individuals** (Art. 17 of the constitution).

Imagine that you are a criminal lawyer defending a client who is on trial for aggravated homicide contrary to Art 539 of the Criminal Code. You are quite certain that she is innocent of the crime. The trial is going in her favor and the probability of acquittal is very high. You have established a good relationship with her and she tells you that although she did not commit this homicide she did commit another homicide four years earlier. She goes on telling you that another woman with long criminal record was convicted of that homicide and is serving life imprisonment for it. You attempt to persuade her to confess to crime but she adamantly refuses. What would be your decision?

1.3. The Theory of Moral Obligation

The study of theory of moral obligation equips the students of Legal Profession and Ethics with some tools which they can use when they discover that there is no rule on the point. There are many theories of moral obligations. However, let's see Utilitarianism, Categorical Imperatives and Golden Rule

Utilitarianism (Jeremy Bentham and John Stuart Mill)

Morally right option in any circumstance is that option which brings about the most good, or the best consequences. Any other option is wrong.

There are different kinds of utilitarianism

A. Act Utilitarianism

An act Utilitarianism holds that an action is right if and only if it produces the best consequences. The only right action to perform in any given situation is that action which produces the best consequences of all those actions that are available to the agent at a given time and place. Any action that produces less than the best consequences is therefore wrong. Hence, lying is wrong in a given situation if and only if telling the truth or remaining quiet produces better consequences.

An action cannot be judged right or wrong abstractly. It depends upon the situation in which an act is performed. Thus, stealing, murdering, telling lie etc may be right or wrong depending on the situation in which they are performed.

Utilitarianism is at odds with the idea that people have rights that may not be trampled on merely because one anticipates good result.

B. Rule Utilitarianism

According to rule Utilitarianism, an action is right if and only if it is in accordance with a set of rules conformity which produces the best consequences. Rule Utilitarianism, in this sense, implies that an action is wrong if it is in accordance with a rule which, if everyone followed it, would have bad consequences.

C. The Golden Rule

The golden rule is also called ethic of reciprocity. The golden rule is best interpreted as saying: "Treat others only in ways that you're willing to be treated in the same exact situation."

D. Categorical Imperative (Immanuel Kant)

Imperative is any proposition that declares a certain action (or inaction) to be necessary. There are two kinds of imperatives. They are hypothetical and categorical imperatives.

Hypothetical Imperative is a rule of action for achieving certain ends. For example, if you want to score grade A in Legal Profession and Ethics you must study hard. Hypothetical imperative is conditional. It depends on the existence of certain end.

Categorical Imperatives are unconditional commands that are binding on everyone at all times. Categorical imperatives command the performance of an action that is intrinsically right.

CHAPTER TWO

THE LEGAL PROFESSION

2.1 Meaning and Nature of Legal Profession

Legal profession is the collective name given to lawyers. It includes judges, prosecutors, legal educators, counselors, legal scholars and others.

Legal profession is an occupation that requires advanced training in law. The motive in legal profession is safeguarding order, liberty and attaining justice.

2.2 Admission to the Legal Profession in Ethiopia

It is the jurisdiction of the state to determine the requirements to practice before state courts. To practice before federal courts, any Ethiopian should hold one of the three types of licenses¹ issued by the Ministry of Justice

1. Federal first instance court advocacy license
2. Federal courts advocacy license
3. Federal court special advocacy license

The followings are some common requirements to obtain these licenses.

- Graduation from legally recognized institution and experience
- Suitable code of conduct for assisting in the proper administration of justice
- Pass mark in the advocacy entrance examination
- No conviction and sentence in an offense showing an improper conduct
- Documents evidencing entrance into a professional Indemnity Insurance Policy

2.3 Bar Associations and their role in Legal Profession

1. Ethiopian Bar Association²

The Ethiopian Bar Association (EBA) conducts three activities:

¹ Article 3 and 7 of Federal Courts Advocates Licensing and Registration Proclamation No. 199/2000

² The Ethiopian Bar Association (EBA) is a professional organization representing lawyers and legal practitioners in Ethiopia. Established to promote the rule of law, advocate for the rights of legal professionals, and enhance the administration of justice in the country

1. **Continuing Legal Education CLE**); is intended to improve legal knowledge and skills of advocates, and to create awareness of new laws among its members through workshops.
2. **Law Reform and Advocacy**; by proposing amendments and new laws to contribute to the developments in law and in the administration of justice in Ethiopia, and creates awareness of law and human rights through research and publications.
3. **Legal Aid Services**; it provides legal aid services to indigent in association in cooperation with other associations

2.4 Unauthorized Practice in Legal Profession

Unauthorized practice of law is the practice of law by a person, typically a non-lawyer, who has not been licensed or renewing thereof to practice law in a given jurisdiction. Accordingly, it is only an advocate who can draft pleadings, contracts and other legal documents for others. There are certain exceptions to this rule. A person that has no advocacy license can render advocacy service for his relatives and others as provided under article 3(2) Proclamation No.199/2000.

CHAPTER THREE

JUDICIAL CONDUCT

3.1. Ethical Duties of Judges in Judicial activities

1. Independence³

Independent judiciary is a pre-requisite for democratic and impartial administration of justice. Judicial independence has individual and institutional aspects. The individual aspect of judicial independence is called personal or decisional independence. It refers to state of mind of judges. Security of tenure and financial security guarantee decisional independence.

Security of tenure exists; when the other branches of government (executive or legislature) cannot remove the judge from office in discretionary or arbitrary manner until retirement or for life. A judge who has no security of tenure makes the decision that favors the executive or legislature to retain his position. Such a judge will not make his/her decision based on law and evidences before them.

Financial security implies; rights of judges to non-reducible compensation while they are in office. Judges whose salary is reduced or increased upon the discretion of the executive or legislative have no decisional independence.

Art 23 of federal Code of Judicial Conduct prohibits ex parte communication. It prohibits judges from discussing the merits of a case pending before a court. Judges cannot give any opinion on the case pending before the court to the media. The rules against ex parte communication protect the fundamental rights to be heard, the rules help to ensure that judge's decision is based on nothing other than law and evidence.

Art 23 bans not merely private communications between a judge and litigant, litigant's advocate or witnesses. It bans all private communication with the exception of communication between judges presiding over the same case. Even the communication with another judge who does not try the case is prohibited.

2. Accountability

According to Article 12 of the constitution, —any public official or an —elected representative is accountable for failure in official duties. Judges are not elected representatives as judges are appointed. Is

³ See preamble to Ethiopian Federal Judges Code of Judicial Conduct (2001)

a judge a public official? "Officials of the Federal Government" means a member of the House of Peoples' Representatives and of the House of the Federation, officials of the Federal Government above ministerial rank, ministers, judges of the Federal Supreme Court and other officials of the Federal Government of equivalent rank.⁴

Are Ethiopian judges accountable? To whom they are accountable? Accountable to the FDRE Constitution, Laws, and Judicial Code of Conduct and to the Minister of Justice or Bureau of Justice.

The constitution of the FDRE specifically empowers judicial administration council to remove a judge for violating disciplinary rules (Article 79(4) (a)). Thus, the provision of Article 79(2), that prohibit interference of the influence of any governmental body or governmental official does not mean judges are immune from disciplinary proceedings.

However, disciplinary proceedings should not be instituted against a judge for **mere legal error**. Subjecting a judge to discipline for legal error undermines the judicial independence. Part of the justification for the "mere legal error" doctrine is that making mistakes is part of being human and is inevitable in the context in which most judicial decision-making takes place.

If judges are subject to discipline for mere legal error, they will be confronted by two choices:

1. The decision based on conscious understanding of law and evidence, and
2. The decision that is less likely to subject him to discipline.

And, they most likely choose the second. In such situation, judicial accountability put judicial independence at stake. Judicial independence and judicial accountability cannot co-exist.

How can we promote both judicial independence and judicial accountability when they contradict? Should we opt for one? Which one?

To promote judicial independence and judicial accountability, mere legal error should not subject a judge to a discipline. In this way, judicial independence can be promoted. However, all kinds of legal errors should not go unpunished. Thus, clear error, pattern of legal error, decision made in bad faith and egregious legal errors should subject a judge to a disciplinary measures.

⁴ article 2(1) of proclamation No. 25/1996

Clear legal error; exist when an action of a judge is in contrary to clear and determined law about which there is no confusion or question as to its interpretation. An appellate court's reversal of a judge's decision alone is not a sufficient proof that the judge committed a legal error justifying sanction.

Egregious legal error; is a serious legal error particularly involving the denial to individuals of their basic or fundamental rights.

Pattern of legal error; when the legal errors are repeated even though they are not the same, they will subject a judge to a discipline

3. Impartiality

It is the fundamental quality of a judge and the care attribute to judiciary. Impartiality is essential to the proper discharge of the judicial office. It applies not only to the decision itself but also to the process by which the decision is made

Impartiality and independence are separate and closely related ethical duties of judges. Independence is the necessary precondition to impartiality and is a prerequisite for attaining impartiality. Impartiality cannot exist without independence but independence can exist without impartiality.

There are two aspects to the requirement of impartiality. They are subjective and objective impartiality.

Subjective impartiality; refers to the judge's internal state of mind and their genuine commitment to being fair and unbiased in their decision making.

Key aspects of Subjective impartiality

Personal integrity; a judge must strive to set aside personal beliefs, opinion or biases that could influence their judgment.

Self- Reflection; judges are expected to engages in self-reflection and recognizes any potentials biases that may hold based on their experiences and background.

Subjective impartiality emphasizes the judge's intent to act fairly, even if external factors challenge that intent.

Objectively impartiality; refers to the external standards and perception of fairness in the judicial process. It focuses on whether a reasonable observer would perceive the judge as unbiased and fair.

Key Aspects Objectively impartiality;

Appearance of fairness; OI emphasizes the importance of not only being fair but also appearing fair to the parties involved and the public.

Judicial conduct; OI can be assessed based on a judge's behavior, decisions and adherence to ethical guidelines.

What kinds of conduct should a judge avoid to be objectively impartial?

Principle 2.2 of Bangalore Principles of Judicial Conduct provides that *"A judge shall insure that his or her conduct both in and out of court maintains and enhance the confidence of the public the legal profession and litigants in the impartiality of judge and of the judiciary"*

Judges must avoid any action which in the mind of reasonable person would give rise to a reasonable suspicion of a lack of impartiality in the performance of judicial functions

In the court of law;

Judges should avoid unjustified reprimand of advocates insulting and inappropriate remarks about litigants and witnesses

- Judges should avoid constant interference in the conduct of the case.
- Judges should not place themselves in the position of an advocate to examine or cross examine witnesses.
- Judges have the right to pose questions to witness to clarify an issue. But, that right should not go to the extent of asking questions that must be asked by the parties or their advocates.

Outside the court;

Judges should avoid making statements that show their partisanship with certain political parties. Such statement creates an appearance of partiality, particularly when the parties before the court belong to the party opponent to other party to which judges expressed their partisan opinion.

Conflict of interest of judges in the case gives rise to both actual and perceived partiality. When conflict of interest occurs, the judges must reclude themselves or be disqualified or must withdraw from the cases.⁵

4. Competence and Diligence

Incompetence and inefficiency is a ground of removal of judges as per article 79(4) of the Constitution. The decision of state or federal judicial administration council to remove a judge from judicial office should be approved by two-third majority vote of state council or HPR. When incompetence and inefficiency does not subject a judge to removal from the office it will subject a judge to other disciplinary measures.

The ethical duty of competence requires legal knowledge, skill, thoroughness and preparation.

A competent judge has the skill required to carry out his judicial function. For example, a judge should have a skill to write summons, judgment, dissenting opinions.

A competent judge should carry out his judicial activities with thoroughness that means he/she should carry out his/her judicial activities with necessary care in a detailed way so that nothing is forgotten. If Judges make thorough decision they leave no issues unanswered.

Judges should also make a necessary preparation.

A judge is diligent when she/he considers soberly, decide impartially and act expeditiously (should not waste time)

Diligence can be affected by the burden of work, adequacy of resources, time for research, and judicial duties other than sitting in courts.

According to Article 4 of the code of judicial conduct, the principal duty of any judge is to apply the law in force in the country. That is, a judge cannot properly ignore or claim ignorance of law. Judges have duties to enhance and maintain their knowledge, skills and personal qualities necessary for the proper performance of judicial duties.

Judges have duty to enhance their legal knowledge individually and collectively. Every judge has individual duty to read laws and books, articles, journals and other sources on law. They should be aware

⁵ article 27 of Proclamation No. 25/1996 (Federal Courts Proclamation)

to keep in touch with the changes in law and legal system. Collectively, judges have ethical duties to organize training particularly to newly appointed and inexperienced judge.

Expeditious disposition of a case is one aspect of diligence; it requires judges to decide the matter with reasonable promptness judges should eliminate any avoidable delays and unnecessary costs, to this effect, judges should encourage parties to settle their matter amicably.

Duty to be punctual is another aspect of diligence; Failure to respect working hours has negative effect on expeditious disposition of the case.

Under Bangalore Principles Of Judicial Conduct, Judges Are Required To Maintain Order And Decorum In All Court Proceedings.

“Order” refers to the level of regularity and civility required to guarantee that the business of the court will be accomplished in conformity with the rules governing the proceeding. Judges should ensure that the arguments of the parties are made with politeness. They should not allow parties or their advocates to insult other parties.

“Decorum” refers to the atmosphere of attentiveness and participants and to the public that the matter before the court is receiving serious and fair consideration. Thus, judges should not allow the member of the public present in the court to behave in a manner that attracts the attention of the judge and the parties. For example, judges should take necessary measures to avoid interruption of the proceeding due to disturbing noises made by the public. Thus, maintaining order and decorum of the court is one aspect of ethical duty of judges to be competent and diligent.

Judges should be patient, dignified and courteous in relation to litigants, witnesses, advocates and others. The way judges behave is crucial to maintain their impartiality. Improper behavior toward parties or their advocates conveys an impression of bias. Disrespectful behavior towards litigants infringes their rights to be heard and compromise the dignity of the court.

5. Equality

A judge shall equally treat all litigants before the courts and protect their right. Equality before Law is essential attribute of justice. Constitution of the FDRE prohibits discrimination on the ground of race, nation, nationality, color, sex, language, religion, political opinion, property, birth or other grounds. Judges should not form a fixed idea about the parties which may not really be true. For example, a judge should not be influenced by the attitude of the society that a member of certain ethnic group is potentially criminal. Judges should avoid speech, gesture, or conduct that shows gender discrimination.

6. Civility among Judges

Civility is a politeness or courtesy. Incivility implies lack of respect and cooperation among judges. Administration of justice is a team work. Lack of cooperation among judges seriously undermines team spirit.

Appellate court judges should avoid personal attack on lower court judges. They should bear in mind that they are sitting “in judgment of cases, not fellow judges.”⁶

3.2. Grounds For Recusal of Judge

According to Article 24 of the Federal judges Code of Judicial Conduct, judges must recuse themselves of their own motion as soon as they are aware of grounds on which the law prohibits them from sitting over the case.

A. Connection of a judge with parties or their advocate [Article 27(1)(a), (b)&(d)]⁷

Judges must recuse themselves when one of the parties or their advocates is their relatives by consanguinity or affinity. Thus, judges should not preside over the cases between their brother or their brother in law and other persons, related by consanguinity or affinity to advocates of the parties, if they previously acted as a legal representative, tutor or advocate of one of the parties. **Can a representation arising from contract be a ground of recusal?**

For example, Mr. Sifan was an advocate in federal courts until March 2007. During his advocacy he represented Mr. Beckant in a suit against Ethiopian Insurance Corporation and won the case. In March 2008 Mr. Sifan was appointed as a judge in the federal high court. If a suit by Mr. Beckan against Ethiopian Insurance Corporation came before Mr. Sifan, he has to recuse himself from the case.

B. Connection of the judge with a case [Article 27(1)(c)]

Judges should recuse themselves when they had a connection with the matters before them. They may have acted in certain capacities before. For example, a judge was a material witness on the matter or a judge previously decided the matter as an arbitrator, civil servant or participated in a matter as a conciliator or mediator.

⁶ Judges should not criticize another judge in public. For example, Judge Anatoly, a federal high court judge, should not say that Judge Sifan, a federal first instance court judge, is incompetent, corrupt etc. Such criticism results in loss of faith in the quality of justice dispensed by the judge who was subjected to the criticism.

⁷ The relationship between a judge and parties to the suit or their advocates provided under article 27(1) of Proclamation No. 25/1996 is not exhaustive. For example, it does not cover relations like romantic relationship, or friendship.

C. Other grounds [Article 27(1)(e)]

Other grounds which are sufficient reasons to conclude that injustice may be done and fall under this category. Such ground may include social or business relationship of a judge, personal knowledge of evidence, personal relationship not covered under Article 27(1)(a) to 27(1)(d).

If a judge does not recuse him/herself, he/she will be disqualified by the request of the parties

Personal knowledge of disputed facts could be a ground of recusal for the judge.

How personal knowledge of disputed fact affect the impartiality of a judge? Judges are required to base their decision on law and evidence. However, when a judge has a personal knowledge of the disputed facts (s), he may depend on his knowledge to determine the dispute rather than the testimonies of the witnesses or other evidences produced by the parties.

3.3. Ethical Requirements of Judges in Extra Judicial Activities

Extra judicial activities are activities that have no connection with judicial duties. Art. 28 of Federal code of judicial conduct prohibit in general term activities which are in consistent with judicial duties.

1. Passive Investments

Passive investment includes the ownership of stocks, bonds, mutual fund shares, and other financial instruments. Passive investment is not time consuming because judges can manage passive investment either after hours or during breaks, in judicial day. However, a passive investment is allowed a passive investor Judges should reduce possibility of refusal or disqualification from the bench. Recusal or disqualifications are unavoidable however; ***judges have ethical duty to reduce unnecessary conflicts of interest that arise when the judge retains financial interests in organizations and other entities that appear regularly in court.*** The duty to reduce the possibility of recusal is imposed on judges because recusal poses some burden on the parties, their advocates, cause delays of administration of justice and imposes disproportionate workloads for the other members of the court.

Active Management and Involvement in Business

Active Management may be seen as the use of time and energy to earn additional income beyond the judicial salary. In US judges are prohibited from serving as officer, director, manager, advisor or employee of any business.

2. Practice of Law

Bangalore Principles of Judicial Conduct prohibits from participating in practice of law. Some examples of practice of law are convincing and giving legal advice; preparing court pleadings and legal documents such as will and contracts.

3. Serving as a Fiduciary

Judges are barred from serving as executors, administrators, trustees, guardians or other fiduciaries. It does not matter whether judges receive remuneration for their services or work for free. The prohibition is due to the concern that private parties might appear to gain some advantage by obtaining a judge to act as executor trustee, administrator or guardian.

The only exception to the prohibition to serve as a fiduciary is the cases of family member and close friends if such service does not interfere with the proper performance of judicial duties, provided the judges does so without remuneration.

4. Arbitration and Mediation

Judicial conduct bars judges from acting as an arbitrator or mediator. Because —the arbitration proceeding could come before the court on which the judge sits courts could be drawn into social and political controversies in which a judge acted as an arbitrator the judicial office could be exploited in an arbitrator.

5. Education

Bangalore principles of judicial conduct provides that —Subject to proper performance of judicial duties, a judge may write, lecture, teach and participate in activities concerning the law the legal system, the administration of justice or related matters. A judge may contribute to legal and professional education by delivering lectures participating in conference and seminars judging student training hearings and acting as examiner. A judge may also contribute to literature as an author or editor. Such professional activities by judges are in the public interest and are to be encouraged.

6. Political Activities

Judges should not participate in political activities. Thus, membership in a political organization is prohibited.

7. Membership in Organization

Judges, like any other citizens, have freedom of association. **However;**

1. It would not be appropriate for judge to participate in an organization if its object is political if its activities are likely to expose the judge to public controversy or if the organizations are likely to be regularly or frequently involved in litigation.
2. There should not be excessive demand on time of judge
3. A judge should not serve as legal advisor
4. A judge should not lend his name in any fundraising

3.4. Appointment, Withdrawal, Transfer, Promotion and Removal of Judges

Judicial selection, appointment, and promotion procedures govern the recruitment and staffing of courts, and may serve as a primary condition for ensuring judicial accountability.

1. Judges' Tenure and Removal Mechanisms

Judicial tenure and the mechanisms for disciplining and removing judges are as important for securing judicial independence as the processes for selecting, appointing, and promoting judges.

2. Criteria for Appointment

- A. Legal Skill;** professional legal skills of the kind required for judicial work include, knowledge of evidence, procedure and practice, knowledge of the law, analytical ability
- B. Personal Qualities;** qualities like integrity, impartiality, industry, a strong sense of fairness and a willingness to listen to and understand the viewpoint of others.

3.3. Appointment, Withdrawal and Removal of Judges in Ethiopia

i. Federal Judicial Administration Council

In Ethiopia, all the three branches of government participate in the appointment of judges to any Ethiopian court established by the constitution of FDRE. The judiciary has no say on the appointment of the president and vice president of the regional supreme courts or federal Supreme Court (Article 81(1) & (3)). The President and Vice President of the federal Supreme Court are appointed by the House of Peoples Representatives upon recommendation of the Prime Minister.

Concerning Federal judges of any level except the President and Vice President of the Supreme Court, the Prime Minister shall submit to the House of Peoples' Representatives for appointment candidates selected by the Federal Judicial Administration Council.

State executives are less involved in judicial appointment when compared with federal government. All judges of the state courts except presidents and vice-presidents of supreme courts are appointed by the state council upon recommendation of the state judicial administration council.

On recommending the state high court and Supreme Court judges to the state councils, the state judicial administration councils should obtain the views of the federal Judicial Administration Councils.

The Federal Judicial Administration Council Consists Of 9 Members.

- 3 :- Members of HPR
- 3 :- Presidents of the First Instance Court, High Court And Supreme Court
- 1 :- Vice President Of Federal Supreme Court
- 2:- Most Senior Judges One From Supreme Court And The Other From High Court

The council is chaired by the president of the federal Supreme Court.

ii. Criteria for Judicial Appointment

A. Nationality

Foreign nationals cannot be a federal judge. The knowledge of the culture and language in addition to the training in Ethiopia cannot qualify a person to be a judge. For example, a French National who graduated in bachelor of laws from Haramaya University and speaks Amharic fluently cannot be a judge. A person is an Ethiopian when —both or either parent is Ethiopian (Article 6 of the Constitution).

B. Loyalty to the Constitution

A person is loyal to the constitution when he/she respects and protects the constitution. For example, a person who tries to overturn by force organs established by the constitution is not regarded as loyal to the constitution.

C. Legal Training or Legal Skills

Graduation from universities or colleges is not a prerequisite to be eligible for a judgeship. The acquisition of adequate legal skills suffices to become a judge. These legal skills can be obtained without attending law schools through experience in court.

D. Diligence, Sense of Justice and Good Conduct

E. Consent a person to assume a judgeship

F. Age; A person should attain an age of 25 year to be a judge.

A member of the Judicial Administration Council nominates a person that he or she thinks fit for the office of a judge. That is, any member of the council gives the name(s) of persons that, in his or her opinion, qualified to be a judge. As a result, the council will have lists of persons among whom judges are going to be selected. The member of the council who nominates the candidate judge(s) has no duty to provide the details of the candidate judge that he/she nominates.

In the next step, the chairperson of the council provides the profile of the nominees to the council. He/she provides the council with such details of the nominee as the level of education, publication, work experience, character, nationality, etc. of the nominee. Based upon these details provided by the chairperson, the council chooses the candidate-judges that it thinks is qualified for the position. It leaves out some whom it thinks less qualified.

After the selection by the council, the chairperson of the council presents the selected candidatejudges to the prime minister. The prime minister may leave out some or recommend all candidate-judges for appointment to the House of Peoples Representatives. The recommendation of the council is not binding upon the prime minister. The prime minister has the discretion to reject all the candidate-judges.

Finally, the House of Peoples Representatives appoints the judges by the majority vote. The House can reject all the candidate-judges or only leave out some. The House has no constitutional duty to appoint anybody that is recommended by the prime minister.

iii. Withdrawal and Removal of Judges

The executive plays important role in the appointment of the federal judges. However, the executive has no role in removing judges from their office. Article 79 of the constitution lay down that judges can be removed from their office only upon decision of the judicial administration council and approval of that decision by the HPR or state councils. Even the legislature can remove the judges only on certain grounds such as; Violation of Disciplinary Rules, Gross incompetence or inefficiency and Incapacity to carryout judicial duties due to illness

3.4. Factors that Influence Ethical Requirement of Judges

Among the multitude of factors affecting the ethical conduct of judges noteworthy are remuneration, resource of the court, workload and off bench activities. A meager (hand to mouth) remuneration may expose judges to violation of judicial discipline. Out of the financial constraints judges may sell justice to the citizens. Meager salary may also lead judges to conduct other business to supplement their earnings that may affect the official duties of judges.

The scarcity of resources in the court affects the ethical conduct of judges. These resources could be human or material resources. The availability of resources such as computers, books in the library and other necessary supplies increases the judicial performance. For example, a judge should be competent by updating his knowledge of the law. But if those laws are not available for that judge or books are not available it is very difficult for a judge to keep in touch with the dynamism in the law.

The work load of judges affects their ethical duty to be diligent. A judge with overload cannot pay attention to the details of the matter and render expeditious decision.

3.5. Liability (Responsibility) for Breach of Rules of Conduct

Violation of code of judicial conduct results in disciplinary measures. A conduct that results in violation of code of judicial conduct may also subject a particular judge to civil and/or criminal liability. For example, accepting a bribe results in both disciplinary measures and criminal punishment because bribery is prohibited under federal Code of Judicial Conduct and the Criminal Code.

3.5.1. Disciplining Agency

Federal Judicial Administration Council is vested with the power of disciplining judges that violate the Federal Code of Judicial Conduct

Disciplinary Measures

- Oral warning
- Written warning
- Fine not exceeding three month salary
- Demotion of the post and cut in salary
- Removal from office

Warning can be public or private. Public warning is published in mass media or other means such as posters. Oral warning is imposed on a judge for simple violation of the Code of Judicial Conduct. Written

warning is imposed on a judge whose violation of the Code of Conduct is more serious than the violations that deserve oral warning.

3.5.2. Procedures of Disciplinary Proceeding

a. Initiation

Any person can initiate a disciplinary proceeding against a judge. There is no requirement of vested interest in the matter unlike article 33(2) of CPC. A member of the Council or the council itself can initiate the proceeding. A person who alleges the breach of code of conduct submits a written petition with the evidences to the Council directly or through the presidents of the courts.

b. Investigation

The Judicial Administration Council will reject the petition and notifies the rejection to the petitioner if it finds the petition unfounded. However, it will direct the petition to the Judgment Review Service Department when there are no sufficient evidences for further investigation.

c. Hearing

The Council conducts hearing when it believes that petition submitted against a judge is proper. It also conducts hearing when the report of Judgment Review Department shows breach of Code of Judicial Conduct.

CHAPTER FOUR

ADVOCATES' ETHICS

4.1 The profession, the Justice System, Court and the Country

- He shall act in accordance with the rules of the professional conduct
- He has the duty to serve justice,
- Duty to cooperate for justice by showing special endeavor for the administration of the justice machinery
- Duty to provide community service; council of ministers regulation No.57/99) Provides as any advocate shall render at least 50 hours of legal service, in a year, free of charge or upon minimum payment
- One of the major purposes of advocacy service is to assist (support) the justice machinery. Advocacy service is essential to save innocent and give deviants what they deserve or place in a disadvantageous position of what so ever. It enables to minimize the occurrence of injustice that may result from lay man or weak parties' inability in the production of pieces of evidence and persuasion,

4.2 Ethical Requirements of Advocates in relation to their Clients

Client is a person using the service of a professional, lawyer (advocate). Client-Advocates relationship is established when a person manifests to an advocate his intent that the latter provides legal services for him; and the advocate manifests to the client to do the same.

It is the most sensitive relationship of all relations .Most clients are laymen, emotional, unfamiliar with the justice system and usually come to get professional service, advice, and or support including representation.

4.2.1. Diligent and Competent Representation

The competent representation requires the legal knowledge, skill, attitude, thoroughness and preparation reasonably necessary for the representation.

Thoroughness and Preparation; Competent handling of a particular matter includes inquiry into and analysis of the factual and legal elements of the problem

Communication; Lack of openness is one of the major sources of misunderstanding in the advocate – client relationship. Transparency and confidentiality is the main thing. Adevocates shall keep a client reasonably informed about the status of a matter and promptly comply with reasonable requests for information.

An advocate who receives from opposing counsel an offer of settlement in a civil controversy or a proffered plea bargain in a criminal case should promptly inform the client of its substance unless prior discussions with the client have left it clear that the proposal will be unacceptable.

Adequacy of communication depends in part on the kind of advice or assistance involved. For example, in negotiations where there is time to explain a proposal, the advocate should review all important provisions with the client before proceeding an agreement. In litigation a lawyer should explain the general strategy and prospects of success and ordinarily should consult the client on tactics that might injure or coerce others. On the other hand, an advocate ordinarily cannot be expected to describe trial or negotiation strategy in detail.

Withholding Information

An advocate may also have to act on behalf of a client without first consulting or communicating him due to practical difficulties. In such circumstances, an advocate may be justified in delaying transmission of information Where;-

- a. The client is a child or suffers from mental disability.
- b. The client would be likely to react imprudently to an immediate communication.
- c. The examining psychiatrist indicates that disclosure would harm the client's mental health.

■ An advocate may not withhold information to serve the lawyer's own interest or convenience.

4.2.2. Duty of confidentiality

Confidential client information consists of information about a client or a client's matter contained in oral communications, documents, or other forms of communications, other than information that is generally known.

If the lawyer or the lawyer's agent learns or comes into possession of the information, during the course of representing a client or consulting with a potential client, regardless of the relationship of the information to the matter involved in the representation or consultation; or at a time before a representation begins or after it ends, the information concerns a specific client (other than a potential client whom the lawyer never represents as a client) are subject to confidentiality.

Rules or court orders governing litigation may provide that information supplied to a lawyer may not be disclosed to the client

Confidentiality is a key to Transparency. *Advocates' duty to confidentiality is not only facilitates the full development of facts essential to proper representation of the client but also encourages people to seek legal assistance.*

The obligation of professional confidentiality of an advocate may not cease because of termination of the contract with the client. See 10(3) of the federal court advocates 'code of conduct, council of ministers' Reg. No.57/99)

■ The duty of confidentiality is not absolute, i.e. subject to an exception.

4.2.3 Contract of Advocacy

Contract of advocacy is regulated by general principle of the law of contract especially law of agency. The client has ultimate authority to determine the purposes to be served by legal representation, within the limits imposed by law and the lawyer's professional obligations. An advocate is not required to pursue objectives or employ means simply because a client wishes to be done. Even if he acted within his scope of power the advocate is responsible for violation of the codes of conduct if he carried out the misdeeds of his client.

An agreement concerning the scope of representation must accord with the rules of Professional Conduct and other law.

Criminal, Fraudulent and Prohibited Transactions (agreement)

An advocate may not knowingly assist a client in criminal or fraudulent conduct. However, the fact that a client uses advice in a course of action that is criminal or fraudulent does not, of itself, make an advocate a party to the course of action. Since, there is a critical difference between offering a legal explanation of suspicious conduct and suggesting ways that a crime or fraud could be committed without punishment.

Fee Agreement

Remuneration is contractual but this is not without exception. The code of conduct for advocates also provides that advocates should charge and accept fair, reasonable and legal fees within the maximum limit (scale).

The advocate must avoid all methods and attitudes likely to give to his profession a profit-seeking or commercial character.

The advocate may not conclude an agreement with the client to receive a salary by surrendering to him the fees to which he could be entitled from the client. Other than legal interest, the only interest an advocate may collect on remaining debts is interest upon which he has agreed with the client in writing. If not fixed, the interest charged shall be the legal rate fixed by law, 9% per annum according to Art 1751 Civil code. The basis or rate of the fee shall be communicated to the client, preferably in writing, **before or within a reasonable time** after commencing the representation.

A fee may be contingent on the outcome of the matter for which the service is rendered, except in a matter in which a contingent fee is prohibited by law. A contingent fee agreement shall be in writing.

A contingent fee is a fee arrangement where a lawyer only gets paid if their client wins or achieves a specific outcome in a case. If the client doesn't win, the service provider typically doesn't get paid a fee though they may be reimbursed for expenses.

An advocate may demand payment in advance, but they must reimburse any percentage that was not achieved. He may accept property in payment for services, such as an ownership interest (share) in an enterprise. Providing this does not involve acquisition of a proprietary interest in the cause of action or subject matter of the litigation contrary to the pertinent rules of conduct. However, a fee paid in property instead of money may be subject to special evaluation because it involves questions concerning both the value of the services and the advocate's special knowledge of the value of the property.

It is proper to define the extent of services in light of the client's ability to pay. An advocate should not exploit a fee arrangement based primarily on hourly charges by using wasteful procedures.

4.2.4 Conflict of Interest in General

An advocate shall not represent a client if the representation of the client will be directly adverse to another client, unless:

- 1) He reasonably believes the representation will not adversely affect the relationship with the other client; and
- 2) Each client consents after consultation

An advocate shall not represent a client if the representation of that client may be materially limited by the former's responsibilities to another client or to a third person, or by the advocate's own interests.

As a general proposition loyalty to a client prohibits undertaking representation directly adverse to that client without that client's consent.

The general rule is that an advocate ordinarily may not act as advocate against a person he represents in some other matter, even if it is wholly unrelated.

Advocate's Interests

The advocate's own interests should not be permitted to have adverse effect on representation of a client.

Conflicts in Litigation

A number of rules of conducts prohibit representation of opposing parties in litigation.

Interest of Person Paying for an Advocate's Service

An advocate may be paid from a source other than the client, if the client is informed of that fact and consents and the arrangement does not compromise the advocate's duty of loyalty to the client. **For example**, when an insurer and its insured have conflicting interests in a matter arising from a liability insurance agreement, and the insurer is required to provide special counsel for the insured, the arrangement should assure the special counsel's professional independence.

Resolving questions of conflict of interest is primarily the responsibility of the advocate undertaking the representation. In litigation, a court may raise the question when there is reason to infer that the advocate has neglected the responsibility. In a criminal case, inquiry by the court is generally required when an advocate represents multiple defendants.

Conflict of Interest: Prohibited Transactions

An advocate shall not enter into a business transaction with a client or knowingly acquire an ownership, possessor, security or other pecuniary interest adverse to a client. **Unless:-**

- 1) The transaction and terms on which he acquires the interest are fair and reasonable to the client and are fully disclosed and transmitted in Writing to the client in a manner which can be reasonably understood by the client;
- 2) The client is given a reasonable opportunity to seek the advice of independent counsel in the transaction; and
- 3) The client consents in writing thereto.

An advocate shall not provide financial assistance to a client in connection with pending or contemplate litigation. **Except that:-**

- 1) An advocate may advance court costs and expenses of litigation, the repayment of which may be contingent on the outcome of the matter; and
- 2) An advocate representing an indigent (poor) client may pay court costs and expenses of litigation on behalf of the client.

An advocate shall not accept compensation for representing a client from one, other than the client. **Unless:-**

- 1) The client consents after consultation
- 2) There is no interference with the lawyer's independence of professional judgment or with the client-lawyer relationship; and
- 3) Information relating to representation of a client is protected

An advocate related to another lawyer through parent, child, sibling or spouse shall not represent a client in a representation that directly adverse to a person who, represented by such other lawyer except upon the consent by the client after consultation regarding the relationship.

An advocate shall not acquire (have) a proprietary interest (direct financial interest) in the cause of action or subject matter of litigation the lawyer is conducting for a client.

4.3 Non-professional Subsidiary Activities

An advocate is not totally prohibited from involving in non-professional subsidiary activities. But limited to those consistent with rules & principles of the profession

CHAPTER FIVE

ETHICS OF THE PUBLIC PROSECUTOR

Prosecution is the process of or the act of a criminal proceeding in which an accused person is tried. In exceptional instances the public prosecutor may involve in civil matters on behalf of the government.

5.1 Eligibility

The Federal Prosecutor Administration Council of Ministers Regulation No 44/1998 Article 4 provides requirements for the appointment of public prosecutor. Accordingly, any person who is an Ethiopian citizen; loyal, to the FDRE Constitution; a graduate in law with degree or diploma from a recognized University; distinguished himself by his diligence, loyalty and good character; and is of 18 years of age and above may be appointed as a prosecutor.

Basic Functions the Public Prosecutor's Office shall:

1. Supervise activities of inquiry institutions and operative activities of other institutions
2. Organize, conduct and perform pre-trial investigation
3. Initiate and carry out criminal prosecution
4. Prosecute on behalf of the State
5. Supervise implementation of penalties
6. Protect rights and lawful interests of persons and the State in accordance with procedures established by law
7. Submit claims and applications to courts in cases stipulated by law
8. Take part in court review of cases when required by law.

5.2 Basic Ethical Principles for the Functions of Public Prosecutor

Independence of Public Prosecutor

Public prosecutors shall be independent from any influence by any other institution or official of neither legislative nor executive branch and shall obey to laws only.

Immunity of Public Prosecutors

In order to discharge his function freely within the scope of his power the law should guarantee some sort of privilege or exemption from responsibility.

Confidentiality

The public prosecutor should respect the principle of confidentiality of information he/she has acquired during the performance of his/her official duties except for legal reason. The public prosecutor shall not use the acquired information for his/her private interests nor allow the use of such information in the interest of other private individuals.

The very purpose which a person assumed the office of prosecution is to answer the question of securing the peace, order and security of the general public. Thus, there must be no other consideration which urges the public prosecutor in carrying out the job for which he/she is assigned.

The public prosecutor shall not disclose to any person any information gained in the course of his official duties or otherwise except to the extent that:-

- Such disclosure is necessary for the discharge of his lawful duty,
- Such information is of minor importance or is a public knowledge;
- Such other person is legally permitted to know such matter.

Competence and Diligence

Competency connotes the ability of the public prosecutor to discharge his responsibility in reasonably well manner. The public prosecutor must be competent in performing his professional responsibility. He should upgrade his/her knowledge and skill by strictly attending the day today changes in the content of the law whether through education or training.

Diligence: public prosecutor should give decisions timely and promptly taking in to account public money, public reliance and confidence upon the undertaking and still respecting the right to speedy trial of a person accused as is stated under Article 19(4) of the FDRE Constitution. He should duly be in office during office hours and must do what should be done in time.

Loyalty and Avoidance of Conflict of Interest

Loyalty: the public prosecutor should be loyal to the interests of the government and the public that is represented.

Conflict of interest refers to a certain affair that immediately contradicts with one's responsibility, or disabling the PP to decide fairly and without any form of bias. The public prosecutor may encounter a case which he/she cannot give independent and impartial decision due to the existence of direct or indirect self interest in the issue or the interest of a family, partner and the like. Therefore, the public prosecutor

must not handle a case when he/she knows there is conflict of interest. See art 68 of Regulation No. 44/1998.

5.3 In relation to the Accused, the Court and Other Institutions

The public prosecution office is a hierarchical institution, which is accountable to the Ministry of Justice (at the Federal level) or to Justice Bureau (at the Regional level). This indicates that the public prosecutor forms part of the executive organ of the government.

1. Accused/Suspect

Ethics in the Pre-trial Stage

Public prosecutor may conduct certain investigative activities over the accused. Whenever he conducts investigation, the public prosecutor is expected to clearly disclose the rights of the suspect recognized by the law. Therefore, it is unethical to withhold what is in favor of the suspect in the process of investigation.

The mere fact that a person is suspected and prosecuted of a given crime does not mean that such person has committed the crime, since the final result would be either conviction or acquittal. Be whatever it is, the public prosecutor is expected to observe the rights of the person prosecuted. The public prosecutor is expected to ascertain that the police as well as other personnel under his control respect and refrain from interfering into the rights of the person suspected.

During Trial

After the investigation is accomplished, the investigator hands over the file to the public prosecutor. After receiving the investigation file, the public prosecutor decides whether to frame a charge or otherwise. Where the public prosecutor decides not to bring a charge against the suspect due to lack of sufficient evidence, he closes the file. He may order further investigation with the view of extracting sufficient pieces of evidence. But where there is sufficient evidence, in the eyes of the public prosecutor and he has decided to institute charge against the suspect, the public prosecutor enters into the trial.

Where the public prosecutor has instituted a charge against a certain person suspected of committing crime, he should always be present in every public hearing. If the public prosecutor is unable to be present for a reason beyond his scope (force majeure) he has to notify to the office of prosecution as early as practically possible. Because this is directly or indirectly related to the rights of the person suspected.

The public prosecutor should also respect the principles of public and adversarial debate. Unless it is in the exceptional cases provided by the law where such public hearing affects certain interests. Therefore, public prosecutor should not request for hearing in camera unless the law provides it.

The public prosecutor should always observe the obligation of timely communication of evidences to the person prosecuted or his representative.

The function of the public prosecutor can be said to be completed and effective when it is executed. Therefore, the public prosecutor should not be careless in the supervision of execution of penal sentences. In the course of such supervision, the public prosecutor should ascertain that the constitutional rights of the person imprisoned are observed and respected. Thus, carelessness on the part of the public prosecutor amounts to violation of the standards of ethics.

The Court

The public prosecutor should respect the independence of the judges. Thus, it is not ethically acceptable that the public prosecutor makes critical comments in respect of the nature of decisions taken by judges. However, he should not be precluded from arguing on applications of appeal.

In relation to the Police

The police and the public prosecutor should work hand in hand for the maintenance of peace and order. The public prosecutor as superior should treat ethically and should accept the fact that police his assistant. The police may arrest individuals unlawfully or those who are arrested lawfully may stay in the police station unnecessarily. In order to avoid such and other improper things, the public prosecutor is under *duty to supervise police judicial activities*.

The police are also under the order of the public prosecutor. However, it is only as regards the criminal investigation matters that the public prosecutor can order the police force.

In relation to the Public

As any ordinary person a public prosecutor may have social interaction s with the society in which he is living. But his involvement should be limited and must be in line with the ethical principles of public prosecutor. He should always exhibit good behavior and conduct to develop good public image and win the confidence of the public.

5.4 Engaging in Activities outside Official Duties

The public prosecutor in principle should be devoted and dedicated to the responsibility to which he/she is assigned. He shall, as well, not undertake any outside activity which would impair his service or which in any way conflicts with his duties or is inconsistent with his position and profession as a prosecutor, art 71(1)

5.5 Other Ethical Considerations

The function of public prosecutor shall not be compatible with membership in any partisan activities including political parties or other political organizations.

The public prosecutor has to dress socially acceptable clothes, recreate in dignified places outside his office. Any public prosecutor shall, at all the time, exhibit good behavior and conduct in and outside office in order to win the respect and confidence of the public.

The public prosecutor should not borrow money persistently and **is strictly prohibited** from borrowing money or attempting to borrow money from a member of the public with whom the prosecutor has contact in charge of his official duties, art 66.

5.6 Liability for Violation of Codes of Conduct for Prosecutors

Depending on the type of interest violated and the persons affected the public prosecutor will be liable criminally, administratively, or civilly.

5.6.1 Administrative (Disciplinary) Liabilities

It regulated by article 81 and seq. accordingly, public prosecutor is subject to either simple or grave disciplinary penalties.

The simple ones are: written warning, a fine not exceeding one month's salary, and disallowance of the next increment pay.

Grounds to impose simple liabilities are; failure to show effort and diligence at work, failure to cooperate with colleagues, obstructing the smooth execution of work, persistent borrowing and similar faults.

Grave disciplinary penalties: demotion and dismissal.

Grounds to impose Grave disciplinary penalties are: taking or soliciting bribes, falsification of documents with intent to obtain benefit for one self or a third party, creating inconvenience to the public by delay of service without good cause, initiating quarrel at work place, regular absence from work without good

cause or without obtaining leave, committing any act against moral and good behavior at work place and similar faults.

5.6.2 Criminal Liability

When the interest affected is that of public attributed to the violated code of conduct, he might be imprisoned.

5.6.3 Civil Liability

Where violating the codes of conduct affect the individuals or groups material (economic), or moral interest, the PP has to redress the loss sustained in addition to his criminal and administrative liabilities.

The End

Short Note from Legal Ethics Text Book

By Abdulfettah Bushura